

ne to another; therefore, if there had not been sin, there
 have been need of a *King*, more then there should have
 been of a Tutor to defend the child, whose father is not
 of a Physician to cure sicknesse where there is health; for
 me, and there is neither death nor sicknesse, but because
 entered into the world, *God* devised, as a remedy of vio-
 unjustice, a living, rationall breathing Law called a *King*,
 Father: now the aberrations, violence, and oppression
 ing which is the living, rationall, breathing Law is no
 no meane intended by *God*, and nature to remove vio-
 low shall violence remove violence? Therefore an unjus-
 unjust, is not that genuine ordinance of *God*, appointed to
 injustice, but accidentall to a *King*. So we may resist the
 of the *King*, and not resist the *King*. 8. If then any cast off
 of a *King*, and become habitually a Tyrant, in so farre he
 as *God*, nor any ordinance which *God* doth owne: If the
 a Tyrant (to speake so) be contrary to a *Kings* Offices, it
 is from *God*, and so neither is the power from *God*. 9. Yea
 which are no lesse from *God*, then the *Kings* are) when
 in to be hurtfull, *Cessant materialiter*, they leave off to be
 because they oblige *Non secundum vim verborum; sed in*
vis, not according to the force of Words, but according to
Von figura literarum F. de actione & obligatione, l. ita sti-
But who (saith the Royalists) *shall be judge betwixt the*
and the people, when the people alludge that the King is a

The King as
 an erring
 man no reme-
 dy against con-
 sultions, and op-
 pressions of
 Anarchy.

There is a Court of necessity, no lesse then a Court of
 and 2. The fundamentall Lawes must then speake, and it
 he people in this extremity, as if they had no Ruler.

1. *But if the Law be doubtfull, as all humane, all Civill;*
incipall Lawes may endure great dispute, the peremptory person
of the Law must be the supreme Judge. This cannot be the
King, it must be the King.

1. As the Scriptures in all fundamentalls are cleare, and
 themselves, and *Actu primo* condemne Heresies, so all
 of men in their fundamentalls, which are the Law of Nature,
 Nations are cleare. And 2. Tyranny is more visible and in-
 le then Heresie, and its soone decerned. If a King bring in
 a native subjects twenty thousand *Turks* armed, and the King
 leade

A Court of
 necessity, and
 a Court of
 Justice.

Humane Laws
 not so obscure
 as Tyranny is
 legible.

lead them. It is evident, they come not to make a friendly visite to salute the Kingdom, and depart in peace: the people have a naturall throne of policie in their conscience to give warning, and materially sentence against the King, as a Tyrant, and so by nature are to defend themselves: Where Tyranny is more obscure, and the thred small, that it escape the eye of men, the King keepeth possession; but I deny that Tyranny can be obscure long.

Ferne, part. 3. sect. 5. pag. 39. Object. 2. Doct. Ferne. *A King may not, or cannot easily alter the frame of fundamentall Lawes, he may make some actuall invasion, in some transient, and not fixed acts; and it is safer to bear these, then to raise a civill Warre of the Body, against the Head.*

It is ridiculous to say, a King cannot be so void of reason, as to destroy his people.

Ans. 1. If the King as King, may alter any one wholesome Law, by that same reason he may alter all. 2. You give short wings to an Arbitrary Prince, if he cannot overflie all Laws to the subversion of the Fundamentalls of a State, if you make him as you do. 1. One who hath the sole Legislative power, who allanerly by himself, maketh Laws, and his Parliament and Councell are onely to give him advice, which by Law he may as easily reject, as they can speak words to him. He may in one transient act (and it is but one) cancell all Laws made against idolatry and Popery, and command, through bad Counsell, in all his Dominions; the Pope to be acknowledged as Christs Vicar, and all his doctrine to be established as the *Catholike true Religion*. It is but one transient act to seal a pardon to the shedding of the blood of two hundred thousand, killed by Papists. 2. You make him a King, who may not be resisted in any case; and though he subvert all Fundamentall Laws, he is countable to God onely, his people have no remedy, but prayers, or flight.

Part. 3. sect. 5. pag. 39. Object. 3. Ferne. *Limitations and mixtures in Monarchies do not imply a forceable restraining power in subjects, for the preventing of the dissolution of the State, but onely a legall restraining power; and if such a restraining power be in the subjects, by reservation, then it must be expressed in the constitution of the Government, and in the Covenant betwixt the Monarch and his people: but such a condition is unlawfull, which will not have the Sovereign power secured, is unprofitable for King, and people; a seminary for seditions and jealousies.*

Ans. I understand not a difference betwixt *forceable restraining* and *legall restraining*: For he must mean by (legall) mans Law, because

because he saith, It is a Law in the Covenant betwixt the Monarch, and his people. Now if this be not forceable, and physicall, it is onely Morall in the conscience of the King, and a Cypher, and a meer vanitie, for God, not the people putteth a restraint of conscience on the King, that he may not oppresse his poor subjects; but he shall sin against God, that is a poor restraint: the goodnesse of the King a sinfull man inclined from the womb to all sin, and so to Tyranny, is no restraint. 2. There's no necessitie, that the reserve be expressed in the Covenant between King, and people, more then in contract of marriage between a husband and a wife, beside her joynter; you should set down this clause in the contract, that if the husband attempt to kill the wife, or the wife the husband, in that case it shall be lawfull to either of them to part companies: For Doct. Ferne saith, *That personall defence is lawfull in the people, if the Kings assaults be* 1. *Sudden.* 2. *Without colour of Law.* 3. *Inevitable:* Yet the reserve of this power of defence, is not necessarily to be expressed in the contract, betwixt King and people. Exigences of the Law of nature cannot be set down in positive Covenants, they are presupposed. 3. He saith, *A reservation of power, whereby soveraigntie is not secured, is unlawfull.* Lend me this Argument: The giving away of a power of defence, and a making the King absolute, is unlawfull, because by it the people is not secured; but one man hath thereby the sword of God put in his hand, whereby *ex officio*, he may as King cut the throats of thousands, and be countable to none therefore, but to God onely: Now if the non-securing of the King, make a condition unlawfull, the non-securing of a Kingdom and Church, yea, of the true religion (which are infinitely in worth above one single man) may it more make the condition unlawfull. 4. A legall restraint on a King, is no more unprofitable, and a seminary of jealousies between King and people, then a legall restraint upon people; for the King out of a non-restraint, as out of seed, may more easily educe tyranny, and subversion of religion: If outlandish women tempt even *Solomon to idolatry*, as people may educe sedition out of a legall restraint laid upon a King, to say nothing, that Tyranny is a more dangerous sin, then sedition; by how much more the lives of many, and true religion, are to be preferred to the safetie of one, and a life peace.

If there be a civill restraint from mans Law, laid upon the King, it must be forceable.

Its more requisite, the people, religion, and Church, be secured, then one man.

Object. 4. *An absolute Monarch is free from all forceable restraints,* D. Ferne, p. 3. and sect. 5. pag. 40.